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Law-537: Bharatiya Sakshya Adhiniyam (BSA) (Paper – II) 5th Semester (Syllabus)

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UNIT – I

1. HISTORICAL DEVELOPMENT: THE INDIAN EVIDENCE ACT, 1872 AND ENACTMENT OF THE BHARATIYA SAKSHYA ADHINIYAM, 2023

The law of evidence is an essential part of the administration of justice. Courts decide civil and criminal disputes on the basis of facts proved before them. The law of evidence determines **which facts are relevant, what evidence may be produced, and how facts can be proved before a court.**

For more than 150 years, the **Indian Evidence Act, 1872** was the principal law governing evidence in India. With the development of technology, electronic communication and digital records, the need for a modern and updated law of evidence was increasingly felt.

As part of the reform of India's criminal justice system, the **Bharatiya Sakshya Adhiniyam, 2023 (BSA)** was enacted to replace the Indian Evidence Act, 1872. The BSA came into force on **1 July 2024**.

➤ HISTORICAL DEVELOPMENT OF THE LAW OF EVIDENCE IN INDIA

1. Ancient Period

In ancient India, the law of evidence was not contained in a single codified statute. Rules relating to proof and evidence were found in ancient legal and religious texts such as:

- **Manusmriti**
- **Narada Smriti**
- **Yajnavalkya Smriti**

Evidence was generally based upon:

1. **Witnesses (Sakshi);**
2. **Documents; and**
3. **Possession and surrounding circumstances.**

The credibility and social position of witnesses often played an important role in evaluating evidence.

2. Medieval Period

During the medieval period, particularly under Muslim rule, the administration of justice was influenced by principles of **Islamic law**.

Evidence was largely based on:

- Oral testimony;
- Documentary evidence;
- Admissions and confessions; and
- Oaths.

The rules regarding the competency and number of witnesses were influenced by the nature of the case and the applicable principles of Islamic jurisprudence.

3. Development During British Rule

Before the enactment of the Indian Evidence Act, 1872, there was **no single uniform law of evidence applicable throughout British India**.

Different courts followed different rules, including:

- English common law principles;
- Local customs;
- Personal laws; and
- Various regulations and statutes.

This lack of uniformity created difficulties in the administration of justice.

Early Legislative Attempts

Several legislative measures were introduced before the Indian Evidence Act, 1872, including:

- **Act II of 1855**
- **Act I of 1868**

These laws attempted to regulate certain aspects of evidence but did not provide a complete and uniform code.

Therefore, there was a need for a comprehensive and systematic law of evidence applicable throughout India.

➤ **ENACTMENT OF THE INDIAN EVIDENCE ACT, 1872**

The **Indian Evidence Act, 1872** was enacted during British rule to consolidate, define and amend the law relating to evidence.

The Act was drafted primarily under the leadership of **Sir James Fitzjames Stephen**, an eminent English jurist.

It was enacted as **Act No. 1 of 1872** and came into force on **1 September 1872**.

The Act introduced a **uniform and comprehensive system of evidence law** for courts in India.

Main Features of the Indian Evidence Act, 1872

The major features of the Act were:

1. Codification of the Law of Evidence

The Act consolidated the principles relating to evidence into a single statutory framework.

2. Uniform Application

It established a relatively uniform system for determining the admissibility and relevance of evidence.

3. Classification of Facts

The Act distinguished between:

- Facts in issue; and
- Relevant facts.

Only legally relevant facts could generally be proved before the court.

4. Oral and Documentary Evidence

The Act provided detailed rules relating to:

- Oral evidence;
- Documentary evidence;
- Primary and secondary evidence; and
- Proof of documents.

5. Witnesses

The Act contained provisions relating to:

- Competency of witnesses;
- Examination of witnesses;
- Cross-examination; and
- Re-examination.

6. Burden of Proof

It laid down rules regarding which party is required to prove particular facts before the court.

7. Presumptions

The Act recognized different kinds of presumptions, including situations where the court **may presume, shall presume**, or treat a fact as **conclusive proof**.

➤ NEED FOR REFORM OF THE INDIAN EVIDENCE ACT, 1872

Although the Indian Evidence Act, 1872 remained an important and effective law for more than 150 years, major technological and social developments created the need for reform.

The original Act was enacted in an era when:

- Computers did not exist;
- Electronic communication was unknown;
- Digital records were not used; and
- Internet-based transactions were unimaginable.

Later amendments, particularly after the development of information technology, introduced provisions relating to **electronic records and electronic evidence**.

However, there was a growing need to modernize and reorganize the law of evidence for the digital age.

The major reasons for reform included:

1. Growing use of electronic records and digital evidence;
2. Development of smartphones and digital communication;
3. Use of CCTV footage and electronic surveillance;
4. Online transactions and digital documents;
5. Need for a simplified and modern legal framework; and
6. Comprehensive reform of India's criminal justice laws.

➤ ENACTMENT OF THE BHARATIYA SAKSHYA ADHINIYAM, 2023

The **Bharatiya Sakshya Adhiniyam, 2023 (BSA)** was enacted as part of a major reform of India's criminal justice system.

It replaced the **Indian Evidence Act, 1872**.

The BSA was enacted along with two other important criminal laws:

1. **Bharatiya Nyaya Sanhita, 2023 (BNS)** – replacing the Indian Penal Code, 1860;
2. **Bharatiya Nagarik Suraksha Sanhita, 2023 (BNSS)** – replacing the Code of Criminal Procedure, 1973; and
3. **Bharatiya Sakshya Adhiniyam, 2023 (BSA)** – replacing the Indian Evidence Act, 1872.

The Bharatiya Sakshya Adhiniyam, 2023 received the assent of the President on **25 December 2023** and came into force on **1 July 2024**.

The BSA applies to **judicial proceedings before courts**, subject to the provisions contained in the Adhiniyam.

➤ OBJECTIVES OF THE BHARATIYA SAKSHYA ADHINIYAM, 2023

The principal objective of the BSA is to consolidate and provide for general rules and principles relating to evidence.

Its important objectives include:

- Modernization of the law of evidence;
- Recognition and proper treatment of electronic and digital records;

- Simplification and reorganization of provisions;
- Adaptation of evidence law to technological developments; and
- Providing a modern legal framework for judicial proceedings.

➤ **IMPORTANT FEATURES OF THE BSA, 2023**

1. Recognition of Electronic and Digital Records

One of the most important features of the BSA is the recognition of **electronic and digital records** within the framework of documentary evidence.

Digital information and electronic records have become increasingly important in modern criminal and civil proceedings.

2. Technological Neutrality

The BSA uses language that is better suited to modern forms of communication and technology.

It recognizes the importance of electronic and digital forms of evidence in the contemporary legal system.

3. Reorganization and Simplification

The BSA reorganizes the provisions of the earlier Indian Evidence Act into a more concise structure.

The **Indian Evidence Act, 1872 contained 167 sections**, whereas the **Bharatiya Sakshya Adhiniyam, 2023 contains 170 sections**.

4. Continued Importance of Earlier Principles

Although the BSA replaces the Indian Evidence Act, many fundamental principles of evidence law continue to remain substantially similar.

These include principles relating to:

- Relevancy of facts;
- Admissions and confessions;
- Oral and documentary evidence;
- Burden of proof;
- Witnesses; and
- Examination of witnesses.

Therefore, judicial precedents developed under the Indian Evidence Act, 1872 may continue to be relevant where the corresponding provisions and legal principles remain substantially unchanged.

➤ **TRANSITION FROM THE INDIAN EVIDENCE ACT, 1872 TO THE BSA, 2023**

The BSA repealed the Indian Evidence Act, 1872.

However, the enactment of the new law does not mean that all previous proceedings automatically become governed by the BSA.

The application of the new law is subject to the provisions relating to repeal, savings and the commencement of the new criminal laws.

Generally, legal proceedings and matters initiated before the commencement of the new criminal laws may continue according to the applicable saving provisions and the law governing such proceedings.

Therefore, the BSA primarily represents the **new statutory framework for evidence applicable after its commencement**, while transitional matters may continue to be governed by the earlier legal framework where saved by law.

IMPORTANT CASE LAW:

State (NCT of Delhi) v. Navjot Sandhu @ Afsan Guru (2005)

This case is important in the development of the law relating to electronic evidence. The Supreme Court considered the admissibility and proof of electronic records.

The case later became significant because its approach regarding electronic evidence was reconsidered in subsequent judicial decisions.

Anvar P.V. v. P.K. Basheer (2014)

This is a landmark case concerning **electronic evidence**.

The Supreme Court emphasized the importance of complying with the statutory requirements for proving electronic records, particularly the requirements relating to electronic evidence under the earlier Evidence Act.

Importance: The case established an important legal framework for the admissibility of electronic records.

Arjun Panditrao Khotkar v. Kailash Kushanrao Gorantyal (2020)

The Supreme Court clarified the law relating to the admissibility of electronic evidence and the requirement of the certificate under the corresponding provisions of the Indian Evidence Act.

Importance: The judgment is one of the leading authorities on the proof and admissibility of electronic records and remains important for understanding the development of evidence law in the digital age.

Conclusion

The development of the law of evidence in India reflects the changing nature of society, administration and technology. The **Indian Evidence Act, 1872** provided India with a comprehensive and uniform law of evidence and remained the foundation of Indian evidence law for more than 150 years.

The **Bharatiya Sakshya Adhiniyam, 2023**, which came into force on **1 July 2024**, replaced the Indian Evidence Act and introduced a modernized framework with greater recognition of electronic and digital evidence. At the same time, it retains many of the fundamental principles developed under the earlier law.

Thus, the BSA, 2023 represents an important step towards adapting the Indian law of evidence to the requirements of the modern and digital age.

2. DEFINITIONS – SECTION 2

Section 2 of the **Bharatiya Sakshya Adhiniyam, 2023** contains important definitions that form the basis of the law of evidence. These expressions help the Court determine what may be treated as evidence, what facts require proof, and when a fact can be considered established.

1. “Evidence”

Under **Section 2**, “evidence” includes:

(a) Oral Evidence

All statements which the Court permits or requires witnesses to make before it regarding facts under inquiry are called **oral evidence**.

Thus, when a witness appears before the Court and gives testimony about facts personally known to him, such statements constitute oral evidence.

(b) Documentary Evidence

“Evidence” also includes:

- Documents;
- Electronic records; and
- Digital records,

including all documents and records produced before the Court for its inspection.

Therefore, under the BSA, evidence is not limited to oral statements or paper documents. **Electronic and digital records are also expressly recognized as evidence.**

Example

If A personally sees B committing an act and later gives a statement before the Court, A's statement is **oral evidence**.

If a CCTV recording, email, WhatsApp message or other relevant electronic record is produced before the Court, it may constitute **documentary evidence**, subject to the applicable rules regarding admissibility and proof.

2. "Fact"

A **fact** includes:

1. Anything, state of things, or relation of things capable of being perceived by the senses; and
2. Any mental condition of which a person is conscious.

Facts Perceived by the Senses

A fact may be something which can be:

- Seen;
- Heard;
- Smelled;
- Touched; or
- Otherwise perceived through the senses.

Example

- A saw B running away from a particular place.
- A heard the sound of a gunshot.
- A saw a damaged vehicle.

These are facts capable of being perceived by the senses.

Mental Facts

A fact may also include a person's mental condition, such as:

- Intention;
- Knowledge;
- Good faith;
- Negligence;
- Fraud;
- Fear; or
- Ill-will.

Example

The fact that A intended to cause injury to B is a **mental fact**, which may be proved through the conduct and surrounding circumstances.

3. "Fact in Issue"

A **fact in issue** is a fact which, either by itself or in connection with other facts, determines:

- The existence;
- Non-existence;
- Nature; or
- Extent

of any right, liability or disability asserted or denied in a legal proceeding.

In simple words, **facts in issue are the main facts which the Court must determine for deciding the case.**

Example

If A is accused of murdering B, the following may be facts in issue:

- Whether A caused the death of B;
- Whether the act was committed intentionally; and
- Whether A is legally responsible for the death.

The existence or non-existence of these facts will directly affect the liability of A.

4. “Relevant”

A fact is said to be **relevant to another fact** when the existence of one fact is connected with the other in any of the ways recognized by the provisions of the Bharatiya Sakshya Adhiniyam.

Thus, not every fact can be presented before the Court. Generally, only:

- Facts in issue; and
- Relevant facts

may be proved.

Example

If A is accused of stealing a particular article, the fact that A was found in possession of that article soon after the theft may be a relevant fact.

The relevance of a fact is determined according to the provisions of the BSA.

5. “Document”

A **document** means any matter expressed, described or otherwise recorded upon any substance by means of:

- Letters;
- Figures;
- Marks;
- Symbols; or
- Other means,

and includes **electronic and digital records**.

The purpose of recording such matter must be capable of being used for the purpose of recording that information.

Examples of Documents

Documents may include:

- Written agreements;

- Letters;
- Books and records;
- Maps and plans;
- Emails;
- Electronic records;
- Digital records;
- Messages and other recorded information.

Therefore, the concept of a document under the BSA is broad and includes both traditional documents and modern forms of digital information.

6. “Proved”

A fact is said to be **proved** when, after considering the matters before it, the Court:

1. Believes that the fact exists; or
2. Considers its existence so probable that a prudent person ought, under the circumstances of the particular case, to act upon the supposition that it exists.

Thus, proof does not always require absolute or mathematical certainty. The Court must reach the degree of satisfaction required by law according to the nature of the proceeding.

Example

If reliable witnesses, documents and other evidence establish that A signed an agreement, the Court may hold the fact of signing to be **proved**.

7. “Disproved”

A fact is said to be **disproved** when, after considering the matters before it, the Court:

1. Believes that the fact does not exist; or
2. Considers its non-existence so probable that a prudent person ought, under the circumstances, to act upon the supposition that it does not exist.

Example

A claims that he was present at a particular place at 10:00 a.m. However, reliable evidence establishes that he was in another city at the same time.

The Court may consider A's alleged presence at the first place to be **disproved**.

8. “Not Proved”

A fact is said to be **not proved** when it is neither proved nor disproved.

Thus, where the evidence is insufficient to establish either the existence or non-existence of a fact, the fact remains **not proved**.

Example

A alleges that B borrowed money from him, but A fails to produce sufficient evidence to establish the loan. At the same time, there is also insufficient evidence conclusively establishing that no loan was taken.

In such a case, the fact may be treated as **not proved**.

9. “May Presume”

When the BSA provides that the Court **may presume** a fact, the Court has discretion.

The Court may:

1. Regard the fact as proved unless it is disproved; or
2. Require proof of that fact.

Therefore, **“may presume” creates a discretionary presumption.**

The Court is not bound to presume the fact in every case.

10. “Shall Presume”

When the BSA provides that the Court **shall presume** a fact, the Court is required to presume that fact as proved unless it is disproved.

Therefore, **“shall presume” creates a mandatory but rebuttable presumption.**

The party against whom the presumption operates may produce evidence to disprove the presumed fact.

11. “Conclusive Proof”

When one fact is declared by the BSA to be **conclusive proof of another fact**, the Court must, upon proof of the first fact, regard the other fact as proved.

The Court does not permit evidence to be given for the purpose of disproving the fact declared to be conclusively proved.

Therefore, **conclusive proof creates an irrebuttable presumption**, subject to the statutory provision creating it.

Difference Between “May Presume”, “Shall Presume” and “Conclusive Proof”

Basis	May Presume	Shall Presume	Conclusive Proof
Nature	Discretionary	Mandatory	Final and conclusive
Court's discretion	Yes	No	No
Rebuttable	Yes	Yes	No
Effect	Court may presume or require proof	Court must presume unless disproved	Court must accept the fact as proved

Important Case Law

1. Hanumant Govind Nargundkar v. State of Madhya Pradesh (1952)

This is an important case relating to **proof through circumstantial evidence**.

The Supreme Court emphasized that circumstances relied upon by the prosecution must be firmly established and should form a complete chain pointing towards the guilt of the accused.

Importance: The case helps in understanding how facts may be proved through circumstances.

2. Sharad Birdhichand Sarda v. State of Maharashtra (1984)

The Supreme Court laid down important principles regarding **circumstantial evidence** and the standard required for proving facts based upon a chain of circumstances.

The circumstances must be fully established and should be consistent with the guilt of the accused.

Importance: It is a leading case on the principles governing proof by circumstantial evidence.

Conclusion

The definitions contained in **Section 2 of the Bharatiya Sakshya Adhiniyam, 2023** provide the foundation of the law of evidence. They explain the meaning of important expressions such as **evidence, fact, fact in issue, relevant fact, document, proved, disproved and not proved.**

The concepts of **may presume, shall presume and conclusive proof** are particularly important because they determine the extent to which the Court may or must draw presumptions from established facts. Understanding these definitions is essential for studying the subsequent provisions of the Bharatiya Sakshya Adhiniyam, 2023.

3. CLOSELY CONNECTED FACTS – SECTIONS 3 TO 14

Especially: Relevancy of Facts Forming Part of the Same Transaction

Introduction

The Bharatiya Sakshya Adhiniyam, 2023 is based on the fundamental principle that evidence may generally be given only of **facts in issue and relevant facts**. However, a fact may become relevant because of its close connection with the main fact in issue.

Sections 3 to 14 of the BSA, 2023 deal with different categories of closely connected facts and explain when such facts become relevant in judicial proceedings.

One of the most important provisions is **Section 4**, which deals with facts forming part of the **same transaction**. This principle is commonly known as the doctrine of **Res Gestae**.

➤ FACTS IN ISSUE AND RELEVANT FACTS

Before discussing closely connected facts, it is necessary to understand that a Court generally determines a case on the basis of:

1. **Facts in issue**, and
2. **Relevant facts**.

A fact may not itself be directly in issue, but it may still be admissible if it has a legally recognized connection with a fact in issue.

Sections 3 to 14 recognize various forms of such connection.

➤ FACTS FORMING PART OF THE SAME TRANSACTION – SECTION 4

Meaning

Under **Section 4 of the Bharatiya Sakshya Adhiniyam, 2023**, facts which are not themselves facts in issue may become relevant if they are so connected with a fact in issue or a relevant fact as to form part of the **same transaction**.

These facts may be relevant whether they occurred:

- At the same time and place; or
- At different times and places,

provided that they form part of the same transaction.

This provision corresponds to the principle previously contained in **Section 6 of the Indian Evidence Act, 1872**.

➤ DOCTRINE OF RES GESTAE

The expression **Res Gestae** is a Latin term meaning **“things done”** or **“things forming part of the transaction.”**

The doctrine permits the Court to consider statements, acts or circumstances that are closely connected with the main occurrence and form part of the same transaction.

The basic idea is that where certain facts are so closely connected with the principal event that they form one continuous transaction, they may be relevant even though they are not themselves facts in issue.

Example

A is accused of murdering B.

At the time of the incident, B cries, “**A has stabbed me!**”

If the statement is made immediately and forms part of the same transaction, it may become relevant under the principle of **Res Gestae**.

However, the connection must be sufficiently close. A statement made after a significant interval, after reflection or after the transaction has ended may not fall within this principle.

➤ **ESSENTIAL CONDITIONS FOR APPLYING SECTION 4**

For a fact to be relevant as part of the same transaction, the following conditions are important:

1. There Must Be a Principal Fact or Transaction

There must be a fact in issue or relevant fact forming the principal transaction.

2. The Connected Fact Must Be Closely Connected

The fact sought to be proved must have a close and direct connection with the main transaction.

A remote or unrelated fact cannot be admitted merely because it concerns the same persons.

3. It Must Form Part of the Same Transaction

The acts, statements or events must form part of one continuous transaction.

A transaction does not necessarily mean one single act. It may consist of a series of connected acts.

4. Continuity Is Important

The transaction may continue over a period of time and may even occur at different places.

However, there must be sufficient continuity and connection between the events.

5. Spontaneity Is Important in Case of Statements

Where a statement is sought to be admitted as part of the same transaction, spontaneity is an important factor.

The statement should generally be closely connected with the occurrence and should not be merely a later narration of past events.

➤ **IMPORTANT CASE LAWS ON RES GESTAE**

1. Ratten v. The Queen (1972)

In this important case, the Privy Council considered the admissibility of a statement closely connected with the occurrence.

The case recognized that a spontaneous statement made in close connection with the event may be admissible as part of the transaction.

Importance: The case is a leading authority on the principle that spontaneity and close connection may make a statement relevant under the doctrine of Res Gestae.

2. Sukhar v. State of Uttar Pradesh (1999)

In this case, the Supreme Court explained the principle of **Res Gestae**.

The Court emphasized that the statement must be made contemporaneously with the occurrence or must be so closely connected with it that it forms part of the same transaction.

A statement made after the occurrence as a mere narration of a past event may not be admissible under this principle.

Importance: The case is an important Indian authority explaining the requirement of proximity and continuity between the statement and the main occurrence.

3. Gentela Vijayavardhan Rao v. State of Andhra Pradesh (1996)

The Supreme Court considered the applicability of the doctrine of Res Gestae and emphasized that the statement or fact must be closely connected with the transaction.

Where there is sufficient time for reflection or fabrication, a statement may not be treated as forming part of the same transaction.

Importance: The case highlights that **mere connection is not enough; the connection must be immediate and continuous.**

➤ **OTHER CLOSELY CONNECTED FACTS – SECTIONS 3 TO 14**

Apart from facts forming part of the same transaction, the BSA recognizes several other categories of closely connected facts.

1. Facts Which Are the Occasion, Cause or Effect of Facts in Issue – Section 5

Facts which constitute the **occasion, cause or effect** of facts in issue or relevant facts may become relevant.

Similarly, facts which constitute the **state of things** under which the principal fact occurred may also be relevant.

Example

If A is accused of murdering B, the fact that there was a serious dispute between A and B shortly before the incident may be relevant as an occasion or cause connected with the occurrence.

2. Motive, Preparation and Previous or Subsequent Conduct – Section 6

Facts showing **motive or preparation** are relevant.

The conduct of parties before or after the occurrence may also become relevant where such conduct is influenced by or influences a fact in issue or relevant fact.

Example

If A is accused of murdering B, the fact that A purchased a weapon shortly before the incident may be relevant as evidence of preparation.

Similarly, A's conduct after the occurrence may be relevant depending upon the facts of the case.

3. Facts Necessary to Explain or Introduce a Fact in Issue – Section 7

Facts may be relevant where they are necessary to:

- Explain a fact in issue;
- Introduce a fact in issue;
- Support or rebut an inference;
- Establish the identity of a person or thing;
- Fix the time or place of an occurrence; or
- Show the relationship between parties.

Example

If the identity of an accused person is disputed, facts helping to establish the identity of that person may become relevant.

4. Facts Showing Conspiracy – Section 8

Where there is reasonable ground to believe that two or more persons have conspired to commit an offence or actionable wrong, certain acts, statements or writings relating to the common intention may become relevant against the persons believed to be parties to the conspiracy.

This provision is important in cases involving criminal conspiracy.

5. Facts Otherwise Not Relevant Becoming Relevant – Section 9

Certain facts which may not otherwise be relevant can become relevant if they are inconsistent with a fact in issue or relevant fact.

They may also become relevant where they make the existence or non-existence of a fact highly probable or improbable.

Example

If A is accused of committing an offence at Delhi on a particular date, evidence that A was present in Mumbai at the relevant time may become relevant.

6. Facts Showing Damages – Section 10

In suits where damages are claimed, facts which assist the Court in determining the amount of damages may be relevant.

Example

In a claim for compensation arising from an injury, evidence relating to financial loss and the consequences of the injury may be relevant for determining damages.

7. Facts Showing Rights or Customs – Section 11

Where the existence of a right or custom is in question, certain transactions and instances relating to that right or custom may become relevant.

This provision is particularly useful in disputes concerning:

- Customs;
- Rights;
- Property; and
- Traditional practices.

8. Facts Showing State of Mind, Body or Bodily Feeling – Section 12

Facts showing a person's state of:

- Mind;
- Intention;
- Knowledge;
- Good faith;
- Negligence;
- Rashness;
- Ill-will;
- Goodwill; or
- Bodily condition

may be relevant when such state is itself in issue or relevant.

Example

If A is accused of receiving stolen property knowing that it was stolen, facts showing A's knowledge may become relevant.

9. Facts Showing Whether an Act Was Accidental or Intentional – Section 13

Where the question is whether an act was accidental or intentional, or done with particular knowledge or intention, facts showing a series of similar occurrences may become relevant when they form part of a relevant pattern.

10. Course of Business – Section 14

Facts showing the ordinary **course of business** may be relevant when they help establish that a particular act was done in accordance with the ordinary routine or practice.

Example

Entries or records showing that letters were regularly dispatched according to an established business procedure may be relevant to prove the usual course of business.

➤ IMPORTANT POINT: SAME TRANSACTION

The expression “**same transaction**” is not limited to events occurring at the same place or at the exact same moment.

A transaction may include a **series of connected acts**, provided that there is sufficient unity and continuity.

The Court generally considers factors such as:

- Proximity of time;
- Proximity of place;
- Continuity of action;
- Unity of purpose; and
- Connection between the events.

SHORT DIFFERENCE: FACT IN ISSUE AND RELEVANT FACT

Fact in Issue	Relevant Fact
A fact directly connected with the right or liability in dispute	A fact connected with a fact in issue in a manner recognized by law
It is a principal fact to be decided by the Court	It helps the Court in proving or disproving a fact in issue
Example: Whether A murdered B	Example: A's preparation before the murder

Conclusion

Sections **3 to 14 of the Bharatiya Sakshya Adhiniyam, 2023** deal with facts that are closely connected with facts in issue and therefore become relevant in judicial proceedings.

Among these provisions, **Section 4 relating to facts forming part of the same transaction is particularly important**. It incorporates the principle of **Res Gestae**, under which acts, statements and circumstances forming part of one continuous transaction may become relevant.

The doctrine is based on the principles of **close connection, continuity and spontaneity**. The facts must form an integral part of the main transaction and should not merely be a later or remote narration of the event.

UNIT – II

1. ADMISSIONS (Sections 15–21 and 25)

Meaning of Admission

An **admission** is a statement, oral, documentary or contained in an electronic or digital record, which suggests an inference regarding a **fact in issue or relevant fact**.

Admissions are important because a statement made by a party may be used against that person as evidence.

Section 15 – Definition of Admission

Section 15 defines an admission as a statement suggesting an inference regarding:

- A fact in issue; or

- A relevant fact.

Such statement may be made by a person in the circumstances mentioned in the following sections.

➤ Sections 16–19 – Admissions by Persons

An admission may be made by:

1. **A party to the proceeding;**
2. **An authorized agent** of a party;
3. A person having a proprietary or pecuniary interest in the subject matter;
4. A person from whom the parties derive their interest; and
5. Persons whose position or liability is necessary to prove against a party.

Thus, an admission is not always limited to a direct statement made by a party himself.

➤ Section 20 – Admissions by Persons Expressly Referred to by a Party

A statement made by a person to whom a party has expressly referred for information regarding a matter in dispute may be treated as an admission.

Example

A says to B: “**C knows whether this land belongs to me.**”

If C makes a statement regarding the ownership of the land, that statement may become relevant as an admission against A.

➤ Section 21 – Proof of Admissions

Admissions are generally **relevant and may be proved against the person who makes them** or his representative in interest.

As a general rule, a person cannot use his own admission as evidence in his favour.

However, certain exceptions exist where the law permits the person making the admission to prove it.

➤ Section 25 – Confession to Police Officer

Section 25 provides an important rule regarding confessions.

No confession made to a police officer shall be proved as against a person accused of any offence.

The purpose of this provision is to protect accused persons against improper or involuntary confessions and to ensure fairness in criminal proceedings.

Exception

Information received from an accused person which leads to the **discovery of a fact** may be relevant to the extent permitted by the law.

➤ Important Case Laws

1. Pakala Narayana Swami v. King-Emperor (1939)

The Privy Council explained that an admission is a broad term and that a confession is a particular form of admission.

Important Point: Every confession is an admission, but every admission is not a confession.

2. Aghnoo Nagesia v. State of Bihar (1966)

The Supreme Court held that a confession made to a police officer is generally inadmissible against the accused.

Importance: It is an important case regarding the exclusion of police confessions.

Conclusion

Admissions are statements that suggest an inference regarding a fact in issue or relevant fact. Sections **15 to 21** of the Bharatiya Sakshya Adhiniyam, 2023 deal with the nature, persons and proof of admissions.

Section **25** provides an important protection by making a confession to a police officer generally inadmissible against an accused person.

➤ **ADMISSIONS AND CONFESSIONS (Sections 15–23 and 25)**

1. Admissions

Meaning – Section 15

An **admission** is a statement, oral, documentary or contained in an electronic or digital record, which suggests an inference regarding a **fact in issue or relevant fact**.

Admissions are generally relevant and may be proved against the person making them.

Sections 16–20 – Persons Whose Statements May Amount to Admissions

Admissions may be made by:

- A party to the proceeding;
- An authorized agent;
- A person having a proprietary or pecuniary interest in the subject matter;
- A person from whom a party derives his interest; and
- A person expressly referred to by a party for information regarding a matter in dispute.

Section 21 – Proof of Admissions

Admissions are generally relevant and may be proved against the person who makes them.

As a general rule, a person cannot prove his own admission in his favour, except in certain circumstances recognized by law.

Important Principle

An admission is not conclusive proof of the matter admitted, but it may operate as an estoppel under the provisions of law.

2. Confession Caused by Inducement, Threat, Coercion or Promise – Section 22

Section 22 provides that a confession is irrelevant in a criminal proceeding if it appears to the Court that it was caused by:

- Inducement;
- Threat;
- Coercion; or
- Promise.

Such inducement, threat, coercion or promise must relate to the charge against the accused and must come from a person in authority or otherwise satisfy the conditions provided under the law.

The basic principle is that a confession must be **free and voluntary**.

A confession obtained by improper pressure or influence cannot be used against the accused.

➤ **Confession to Police Officer – Section 23**

Under **Section 23 of the Bharatiya Sakshya Adhiniyam, 2023**, no confession made to a police officer shall be proved against a person accused of an offence.

Similarly, a confession made while a person is in police custody is generally not provable against him unless it is made in the immediate presence of a Magistrate.

The purpose of this rule is to protect an accused person from involuntary or improperly obtained confessions.

Discovery of Fact

Where information received from an accused person leads to the discovery of a fact, so much of the information as distinctly relates to the fact discovered may be proved, subject to the requirements of law.

➤ Section 25 – Admission of Electronic Records

Section 25 deals with the **admissibility of electronic or digital records** and the circumstances in which statements contained in such records may become relevant.

This provision reflects the importance of electronic and digital evidence in modern judicial proceedings.

➤ Important Case Laws

Pakala Narayana Swami v. King-Emperor (1939)

The Court explained the distinction between admission and confession.

Important Principle:

Every confession is an admission, but every admission is not a confession.

Pulukuri Kottaya v. King-Emperor (1947)

This is a leading case on the **discovery of fact**.

The Privy Council held that only that portion of information given by the accused which distinctly relates to the fact discovered is admissible.

Aghnoo Nagesia v. State of Bihar (1966)

The Supreme Court held that a confession made to a police officer is generally inadmissible against the accused.

Importance: It is an important case regarding the exclusion of police confessions.

Conclusion

Admissions are statements relevant to a fact in issue or relevant fact, whereas a confession is a statement in which an accused admits his guilt or substantially admits the facts constituting the offence.

For a confession to be admissible, it must generally be **voluntary**. A confession caused by inducement, threat, coercion or promise is not admissible, and a confession made to a police officer is also generally excluded, subject to the provisions relating to the discovery of facts.

3. CONFESSION AFFECTING THE PERSON MAKING IT AND OTHERS JOINTLY UNDER TRIAL FOR THE SAME OFFENCE

➤ Section 24 – Bharatiya Sakshya Adhiniyam, 2023

Meaning

Section 24 deals with a situation where **two or more persons are jointly tried for the same offence**, and one of them makes a confession which affects:

- Himself or herself; and
- Another person or persons jointly tried.

In such a case, the Court **may take the confession into consideration** against the person making it as well as against the other persons jointly tried for the same offence.

Essential Conditions

For Section 24 to apply, the following conditions must be satisfied:

1. There must be a **joint trial** of two or more persons.

2. The persons must be tried for the **same offence**.
3. One of the accused must have made a **confession**.
4. The confession must affect **both the maker and the co-accused**.
5. The confession must be legally admissible.

Example

A and B are jointly tried for the murder of C. A makes a confession stating:

“B and I committed the murder of C together.”

The Court may take this confession into consideration against both A and B.

However, the confession of A alone is generally **not treated as substantive evidence against B**. The Court normally requires other independent evidence connecting B with the offence.

Important Principle

A confession of a co-accused is considered a **weak type of evidence**. It is generally used only to lend assurance to other evidence already available against the accused.

Therefore, a conviction should not ordinarily be based solely on the confession of a co-accused without independent supporting evidence.

➤ Important Case Laws

Kashmira Singh v. State of Madhya Pradesh (1952)

The Supreme Court held that the confession of a co-accused is not substantive evidence in the ordinary sense.

The Court should first consider the other evidence against the accused. If such evidence creates a basis for conviction, the confession of the co-accused may be used only to provide additional assurance.

Principle: A co-accused's confession cannot ordinarily be the sole basis of conviction.

Haricharan Kurmi v. State of Bihar (1964)

The Supreme Court held that a confession made by one accused and implicating another accused has a limited evidentiary value.

The Court must first examine the independent evidence against the co-accused before taking the confession into consideration.

Importance: This is a leading case on the evidentiary value of a co-accused's confession.

Conclusion

Section 24 of the Bharatiya Sakshya Adhiniyam, 2023 permits the Court to take into consideration a confession made by one accused against himself and other persons **jointly tried for the same offence**.

However, such a confession is not strong substantive evidence against the co-accused and generally requires support from **independent evidence**.

4. DYING DECLARATION (Section 26(1) – BSA, 2023)

➤ Meaning of Dying Declaration

A **dying declaration** is a statement made by a person regarding the **cause of his or her death** or the circumstances of the transaction which resulted in his or her death.

Under **Section 26(1) of the Bharatiya Sakshya Adhiniyam, 2023**, such a statement is relevant when the cause of that person's death comes into question.

The statement may be:

- Oral;
- Written; or
- Made by any other legally recognizable mode, depending upon the circumstances.

➤ Essential Conditions

For a statement to be admissible as a dying declaration:

1. The person making the statement must have died.
2. The statement must relate to the **cause of death** or circumstances of the transaction resulting in death.
3. The cause of death of that person must be in question.
4. The statement must be relevant to the circumstances leading to the death.
5. The declaration should be voluntary and truthful.

Important: Under Indian law, it is **not necessary that the maker must be under an expectation of death** at the time of making the declaration.

Evidentiary Value

A dying declaration is an exception to the general rule against hearsay evidence. It is based on the principle “**Nemo moriturus praesumitur mentire**”, meaning that a person who is facing death is presumed not to lie.

However, the Court must carefully examine whether the declaration is:

- Voluntary;
- Truthful;
- Reliable; and
- Free from tutoring, prompting or influence.

If the Court finds the dying declaration reliable, **a conviction can be based solely on it without independent corroboration.**

➤ Important Case Laws

Khushal Rao v. State of Bombay (1958)

The Supreme Court held that a truthful and voluntary dying declaration can form the sole basis of conviction.

The Court is not required to insist upon corroboration if the declaration is found to be reliable.

Laxman v. State of Maharashtra (2002)

The Supreme Court held that a dying declaration cannot be rejected merely because a doctor's certificate regarding the mental fitness of the maker is absent.

The essential requirement is that the person recording the declaration must be satisfied that the maker was in a **fit state of mind** to make the statement.

P.V. Radhakrishna v. State of Karnataka (2003)

The Supreme Court held that the Court must carefully examine the reliability of a dying declaration. If it is suspicious or unreliable, it should not be made the sole basis of conviction.

Conclusion

A dying declaration under **Section 26(1) of the Bharatiya Sakshya Adhiniyam, 2023** is an important form of evidence where the maker's death is directly in question. If the declaration is voluntary, truthful and reliable, it may by itself form the basis of conviction.

5. JUDGMENTS OF COURTS WHEN RELEVANT, (Sections 34–38 – BSA, 2023)

Introduction

Generally, a judgment of a Court is relevant only between the parties to that particular case. However, under **Sections 34 to 38 of the Bharatiya Sakshya Adhiniyam, 2023**, judgments, orders and decrees may become relevant in certain specified circumstances.

These provisions correspond broadly to **Sections 40 to 44 of the Indian Evidence Act, 1872**.

1. Previous Judgments Relevant to Bar a Second Suit or Trial – Section 34

A previous judgment, order or decree is relevant when it is necessary to determine whether a subsequent suit or trial is barred by law.

This principle is based on doctrines such as:

- **Res Judicata**; and
- **Autrefois acquit and autrefois convict** in criminal matters.

Example

If a matter has already been finally decided between the same parties by a competent Court, the previous judgment may be relevant to determine whether the same matter can be tried again.

2. Judgments in Probate, Matrimonial, Admiralty or Insolvency Jurisdiction – Section 35

A final judgment, order or decree of a competent Court exercising:

- Probate jurisdiction;
- Matrimonial jurisdiction;
- Admiralty jurisdiction; or
- Insolvency jurisdiction,

is relevant when it confers, takes away, declares or recognizes a legal character or status.

Such judgments are generally treated as **judgments in rem**, meaning that they may operate against the world and not merely between the parties.

Example

A decree declaring the validity of a marriage or a judgment granting probate may be relevant in subsequent proceedings.

3. Other Judgments Relating to Matters of Public Nature – Section 36

Judgments, orders or decrees relating to matters of a **public nature** may be relevant when they concern a matter relevant to the subsequent proceeding.

However, such a judgment is generally **not conclusive proof** of the matter stated in it.

4. Other Judgments When Relevant – Section 37

Judgments not covered by the preceding provisions are generally irrelevant unless:

- Their existence is itself a fact in issue; or
- Their existence is relevant under another provision of the BSA.

Thus, an ordinary judgment between different parties cannot generally be used as evidence to prove the truth of the facts decided in that case.

5. Fraud, Collusion or Want of Jurisdiction – Section 38

A party may challenge the relevancy or effect of a judgment by proving that the judgment was obtained by:

- **Fraud;**
- **Collusion;** or
- A Court which was **not competent or lacked jurisdiction**.

Therefore, even a relevant judgment may be questioned on these grounds.

➤ **Important Case Law**

Smt. Kiran Singh v. Chaman Paswan (1954)

The Supreme Court held that a decree passed by a Court without jurisdiction is a nullity.

Importance: A judgment may be challenged where the Court lacked jurisdiction.

Satyadhyan Ghosal v. Deorajin Debi (1960)

The Supreme Court explained the principle of **res judicata**, which prevents the same matter from being repeatedly litigated after it has been finally decided by a competent Court.

Importance: Relevant to Section 34 concerning the effect of previous judgments in barring subsequent proceedings.

Conclusion

Sections **34–38 of the Bharatiya Sakshya Adhiniyam, 2023** specify the circumstances in which judgments, orders and decrees of Courts become relevant. The most important distinction is between **judgments in rem**, which may have a wider legal effect, and ordinary judgments, which are generally relevant only in limited circumstances.

These provisions ensure that previous judicial decisions are given appropriate evidentiary value while preventing unnecessary re-litigation of matters already decided.

6. OPINIONS OF THIRD PERSONS WHEN RELEVANT (Sections 39–45 – BSA, 2023)

Introduction

Generally, a witness is expected to state **facts** and not merely his opinion. However, in certain matters, the opinion of a third person becomes relevant because the Court may require assistance from persons having special knowledge, skill or experience.

Sections **39 to 45** of the Bharatiya Sakshya Adhiniyam, 2023 deal with circumstances in which the opinions of experts and other persons become relevant.

1. Opinion of Experts – Section 39

When the Court has to form an opinion upon a point relating to:

- Foreign law;
- Science or art;
- Identity of handwriting;
- Finger impressions; or
- Any other matter requiring special knowledge,

the opinion of a person specially skilled in that field is relevant.

Such persons are known as **experts**.

Example

In a case involving the cause of death, the opinion of a qualified doctor may be relevant as expert evidence.

Important Point

An expert's opinion is **advisory in nature**. The Court is not bound to accept it and must examine its reliability along with other evidence.

2. Facts Bearing upon Opinions of Experts – Section 40

Facts which support or are inconsistent with the opinion of an expert are also relevant.

Example

If an expert gives an opinion that a person was poisoned, facts relating to the symptoms, medical condition or chemical examination may be relevant to support or challenge that opinion.

3. Opinion as to Handwriting and Signature – Section 41

When the Court has to form an opinion regarding the identity of a person's handwriting or signature, the opinion of a person acquainted with such handwriting or signature is relevant.

A person may be acquainted with another's handwriting through:

- Having seen that person write;
- Receiving letters written by that person; or
- Regularly dealing with documents written by that person.

4. Opinion as to Existence of General Custom or Right – Section 42

When the Court has to determine the existence of a **general custom or right**, the opinions of persons who are likely to know about such custom or right are relevant.

Example

In a dispute concerning a customary right to use a particular pathway, the opinion of persons familiar with the existence of that custom may be relevant.

5. Opinion as to Usages, Tenets or Family Relationships – Section 43

The opinions of persons having special knowledge regarding:

- General customs;
- Religious or social usages;
- Tenets of a community; or
- Family relationships,

may be relevant where such matters are in question.

Such opinions help the Court in determining matters that may not be easily established by direct evidence.

6. Opinion as to Relationship – Section 44

When the Court has to determine the relationship between persons, the opinion expressed through their conduct by persons having special knowledge of the relationship may be relevant.

Example

If members of a family consistently treat A as the legitimate son of B, such conduct may be relevant in determining the relationship.

However, such opinion alone may not be sufficient where the law requires the relationship to be proved by a particular method.

7. Grounds of Opinion – Section 45

Whenever the opinion of a living person is relevant, the **grounds on which that opinion is based** are also relevant.

Therefore, an expert should not merely give a conclusion. The basis and reasons for the opinion may also be examined by the Court.

➤ Important Case Laws

State of H.P. v. Jai Lal (1999)

The Supreme Court explained the meaning and role of an **expert witness**. An expert must possess special knowledge, skill or experience in the particular field.

Principle: Expert evidence is advisory, and the Court must independently evaluate its reliability.

Murarilal v. State of Madhya Pradesh (1980)

The Supreme Court held that expert evidence relating to handwriting must be considered with caution.

Principle: The Court should carefully examine expert opinion and, where possible, consider other supporting evidence.

Conclusion

Sections **39–45 of the Bharatiya Sakshya Adhiniyam, 2023** make certain opinions relevant when the Court requires assistance on matters involving specialized knowledge, handwriting, customs or relationships.

The most important provision is **Section 39**, which deals with expert opinion. However, expert evidence is not conclusive, and its value depends upon the qualifications of the expert, the reasons supporting the opinion and the other evidence available before the Court.

UNIT – III

1. FACTS WHICH NEED NOT BE PROVED (Sections 51–53 – BSA, 2023)

Introduction

Generally, every fact in issue or relevant fact must be proved before the Court. However, the Bharatiya Sakshya Adhiniyam, 2023 recognizes certain facts which **need not be proved**. Sections **51 to 53** deal with such facts.

1. Facts Admitted Need Not Be Proved – Section 51

A fact which has been admitted by the parties or their agents generally **need not be proved**.

Admissions may be made:

- In the pleadings;
- During the course of judicial proceedings; or
- Otherwise in accordance with law.

However, the Court may, in its discretion, require an admitted fact to be proved.

Example

If A admits that he signed a particular agreement, B is generally not required to produce further evidence to prove A's signature.

2. Facts of Which the Court Shall Take Judicial Notice – Section 52

Certain facts are so well established or officially recognized that the Court is required to take **judicial notice** of them.

Such facts need not be formally proved by producing evidence.

The Court shall take judicial notice of matters specified in the BSA, including important matters such as:

- Laws in force in India;
- Public Acts of Parliament;
- Official seals;

- The course of proceedings of Parliament and State Legislatures;
- General divisions of time;
- Territories under the authority of the Government of India; and
- Other matters specified by law.

3. Facts Admitted by Judicial Notice – Section 53

The Court may take judicial notice of certain facts, even if they are not specifically proved by the parties.

Where necessary, the Court may require a person to produce appropriate books or documents to enable it to take judicial notice of a particular fact.

The Court may take judicial notice of facts which are commonly known or are capable of immediate and accurate verification from reliable sources.

Judicial Notice

Judicial notice means recognition by the Court of a fact without requiring formal proof.

The principle saves time and avoids the unnecessary requirement of proving facts that are already certain, official or universally known.

➤ Important Case Law

Onkar Nath v. Delhi Administration (1977)

The Supreme Court observed that the Court can take judicial notice of matters which are generally known and do not require formal proof.

Conclusion

Sections 51–53 of the **Bharatiya Sakshya Adhiniyam, 2023** provide exceptions to the general rule that every fact must be proved. Facts admitted by the parties and facts of which the Court takes judicial notice do not ordinarily require formal evidence. These provisions help in saving judicial time and avoiding unnecessary proof of undisputed or officially recognized facts.

2. KINDS OF EVIDENCE

Oral and Documentary Evidence, Primary and Secondary Evidence, Public and Private Documents

Sections 54–60, 64 and 74–77

Introduction

The Bharatiya Sakshya Adhiniyam, 2023 recognizes different kinds of evidence. The two main forms are **oral evidence and documentary evidence**. Documentary evidence may further be proved through **primary or secondary evidence**, depending upon the circumstances.

➤ Oral Evidence – Sections 54–55

Meaning

Oral evidence means statements made by witnesses before the Court regarding facts under inquiry.

Under Section 55, oral evidence must generally be **direct**.

Direct Oral Evidence

A witness must normally state what he has personally:

- Seen;
- Heard; or
- Perceived through his senses.

Example

If A saw B commit an offence, A may give evidence regarding what he personally saw.

Hearsay evidence is generally not admissible because the witness is stating something heard from another person rather than something personally perceived, subject to recognized exceptions.

➤ **Documentary Evidence – Sections 56–60**

Documentary evidence includes documents, electronic records and digital records produced before the Court for its inspection.

Under the BSA, the concept of documentary evidence is broad and covers modern forms of information such as:

- Written documents;
- Emails;
- Electronic records;
- Digital records;
- CCTV recordings; and
- Other legally recognized electronic material.

The contents of documents are generally proved according to the provisions relating to **primary and secondary evidence**.

➤ **Primary Evidence – Section 57**

Primary evidence means the original document itself produced before the Court for inspection.

Primary evidence is considered the **best evidence** of the contents of a document.

Example

If an original written agreement is produced before the Court, it is primary evidence of its contents.

The BSA also recognizes certain electronic and digital records as primary evidence in accordance with the provisions of the Adhiniyam.

➤ **Secondary Evidence – Section 58**

Secondary evidence means evidence other than primary evidence which may be used to prove the contents of a document in circumstances permitted by law.

It may include:

- Certified copies;
- Copies made from the original;
- Counterparts of documents; and
- Oral accounts of the contents of a document by a person who has personally seen it,

subject to the provisions of the BSA.

Secondary evidence is generally admissible only when the conditions prescribed by law are satisfied.

Example

If the original document has been lost or destroyed, a copy may be produced as secondary evidence, subject to legal requirements.

➤ **Proof of Documents – Sections 59–60**

The contents of documents must be proved according to the rules provided under the Bharatiya Sakshya Adhiniyam.

As a general rule, **primary evidence is preferred**, while secondary evidence may be given only in cases permitted by law.

➤ **Public Documents – Section 74**

Public documents include documents forming the acts or records of:

1. Sovereign authorities;
2. Official bodies and tribunals;
3. Public officers, legislative, judicial or executive; and
4. Public records kept in India of private documents.

Examples

- Court judgments and orders;
- Government notifications;
- Official registers;
- Records maintained by public authorities.

➤ **Private Documents – Section 75**

All documents which are **not public documents** are called **private documents**.

Examples

- Private agreements;
- Personal letters;
- Private business records; and
- Documents executed between private individuals.

➤ **Certified Copies of Public Documents – Section 76**

Every public officer having custody of a public document is required to provide a **certified copy** to a person entitled to obtain it, upon payment of the prescribed fees.

A certified copy contains a certificate that it is a true copy of the original document.

➤ **9. Proof of Public Documents – Section 77**

Public documents may be proved by producing:

- The original document; or
- A certified copy, where permitted by law.

Certified copies are therefore an important method of proving the contents of public documents.

➤ **Important Case Laws**

H. Siddiqui v. A. Ramalingam (2011)

The Supreme Court held that secondary evidence cannot be admitted automatically. A proper foundation must first be laid for producing secondary evidence.

Principle: Secondary evidence is admissible only when the conditions prescribed by law are satisfied.

State of H.P. v. Gian Chand (2001)

The Supreme Court explained that secondary evidence may be admitted where the original document cannot be produced for legally recognized reasons.

Principle: The party relying upon secondary evidence must establish the circumstances permitting its use.

Short Difference

Primary Evidence	Secondary Evidence
Original document	Substitute evidence of its contents
Best evidence	Used in legally permitted circumstances
Preferred method of proof	Admissible only after satisfying legal conditions

Short Difference

Public Documents	Private Documents
Made or maintained by public authorities or officers	All documents which are not public documents
May generally be proved by certified copies	Normally proved according to ordinary rules of documentary evidence

Conclusion

The BSA recognizes **oral and documentary evidence** as important forms of proof. Oral evidence must generally be direct, while documentary evidence is proved through **primary evidence** or, in legally permitted cases, **secondary evidence**.

The distinction between **public and private documents** is also important because public documents may be proved through certified copies in accordance with the provisions of the Adhiniyam.

3. ELECTRONIC OR DIGITAL RECORDS AND THEIR ADMISSIBILITY (Sections 61–63 – BSA, 2023)

Introduction

In the modern age, important information is stored and communicated through computers, mobile phones and other digital devices. Therefore, the **Bharatiya Sakshya Adhiniyam, 2023 (BSA)** gives legal recognition to **electronic and digital records** as evidence.

Electronic evidence may include:

- E-mails;
- SMS and WhatsApp messages;
- CCTV footage;
- Audio and video recordings;
- Computer records;
- Digital documents; and
- Other information stored or transmitted electronically.

1. Special Provisions as to Evidence Relating to Electronic or Digital Records – Section 61

Section 61 provides that the admissibility of electronic or digital records shall be governed by the provisions of the Bharatiya Sakshya Adhiniyam.

An electronic or digital record cannot be denied admissibility merely because it is in electronic or digital form.

Thus, electronic records are recognized as an important form of documentary evidence.

2. Special Provisions Relating to Electronic Records – Section 62

Section 62 deals with the admissibility and proof of electronic or digital records.

The BSA recognizes that electronic and digital records may be produced and proved in accordance with the special provisions of the Adhiniyam.

The purpose of these provisions is to ensure the **authenticity and reliability** of electronic evidence.

3. Admissibility of Electronic or Digital Records – Section 63

Section 63 is an important provision dealing with the admissibility of electronic or digital records.

An electronic or digital record may be admitted as evidence if the conditions prescribed under the section are satisfied. The provision deals with records produced from computer resources and lays down requirements for establishing their reliability.

Where applicable, the record must be accompanied by the required **certificate** containing the particulars prescribed by law.

The certificate helps establish matters such as:

- Identification of the electronic or digital record;
- The manner in which it was produced;
- Details of the relevant device or computer resource; and
- Compliance with the conditions required for admissibility.

Thus, the purpose of Section 63 is to ensure that electronic evidence is **genuine, reliable and properly proved** before it is relied upon by the Court.

➤ Important Principles Regarding Electronic Evidence

1. Electronic Evidence Is Recognized as Documentary Evidence

Electronic and digital records can be produced before a Court as evidence.

2. Authenticity Is Essential

The Court must be satisfied that the electronic record is genuine and has not been improperly altered or manipulated.

3. Certificate Requirement

In cases covered by Section 63, the certificate prescribed under the law is important for proving the admissibility of electronic evidence.

4. Original Electronic Record

Where the original electronic record or device itself is produced in appropriate circumstances, the manner of proof may differ according to the provisions of the BSA and the facts of the case.

➤ Important Case Laws

Anvar P.V. v. P.K. Basheer (2014)

The Supreme Court held that electronic records must be proved in accordance with the special statutory provisions relating to electronic evidence.

Principle: The requirements prescribed for electronic evidence must be followed for its admissibility.

Arjun Panditrao Khotkar v. Kailash Kushanrao Gorantyal (2020)

The Supreme Court clarified the law relating to the admissibility of electronic evidence and the requirement of the certificate under the corresponding provision of the Indian Evidence Act.

Importance: This is one of the leading cases on the proof and admissibility of electronic records and remains relevant where the principles under the BSA are substantially similar.

➤ Conclusion

Sections 61–63 of the Bharatiya Sakshya Adhiniyam, 2023 provide the legal framework for the admissibility of electronic and digital records. Electronic evidence is legally recognized, but it must be proved according to the conditions prescribed by law.

The provisions are particularly important in modern cases involving **mobile phones, computers, CCTV footage, e-mails, messages, audio and video recordings**, and other forms of digital evidence.

4. BURDEN OF PROOF (Sections 104–114 – BSA, 2023)

Introduction

The **burden of proof** means the obligation of a party to prove the facts which it asserts before the Court. The general principle is:

“He who asserts must prove.”

1. General Burden of Proof – Section 104

Section 104 provides that the person who desires the Court to give judgment regarding any legal right or liability dependent upon the existence of certain facts must prove that those facts exist.

Example

If A alleges that B borrowed money from him, A must prove the existence of the loan.

2. Burden of Proving Particular Facts – Section 105

The burden of proof lies upon the person who wishes the Court to believe in the existence of a particular fact, unless the law provides otherwise.

3. Burden of Proving Facts Necessary to Make Evidence Admissible – Section 106

Where a party wants to rely upon evidence that can be admitted only after proving some preliminary fact, the burden of proving that fact lies upon that party.

4. Burden of Proving Exception – Section 107

When a person accused of an offence claims the benefit of a general or special exception, the burden of proving the circumstances bringing the case within that exception lies upon the accused.

However, the standard required from the accused is generally not the same as the prosecution's burden of proving guilt beyond reasonable doubt.

5. Facts Especially Within Knowledge – Section 109

When a fact is especially within the knowledge of a particular person, the burden of proving that fact lies upon that person.

Example

If A is travelling without a valid ticket, the fact that he had a valid ticket may be especially within his knowledge.

6. Burden in Certain Relationships – Sections 110–114

These sections contain special rules regarding the burden of proof in particular circumstances, such as:

- Relationships involving trust;
- Ownership and possession;
- Transactions between persons in a position of active confidence; and
- Certain presumptions regarding legitimacy and other matters.

The burden of proof may shift depending upon the nature of the relationship and the facts of the case.

5. PRESUMPTIONS

Meaning

A **presumption** is an inference which the Court draws regarding the existence or non-existence of a fact from another proved fact or from a rule of law.

Presumptions help the Court in reaching conclusions where direct evidence may not be available.

The BSA recognizes different kinds of presumptions.

1. “May Presume”

Where the law provides that the Court **may presume** a fact, the Court has discretion either:

- To presume the fact as proved unless it is disproved; or
- To require proof of that fact.

Therefore, it is a **discretionary and rebuttable presumption**.

2. “Shall Presume”

Where the law provides that the Court **shall presume** a fact, the Court is bound to presume the fact unless it is disproved.

Therefore, it is a **mandatory but rebuttable presumption**.

3. “Conclusive Proof”

Where one fact is declared by law to be **conclusive proof** of another, the Court must treat the second fact as proved once the first fact is established.

Generally, no evidence can be given to disprove the fact declared to be conclusively proved.

Thus, it creates an **irrebuttable presumption**.

Difference Between the Three Presumptions

Basis	May Presume	Shall Presume	Conclusive Proof
Nature	Discretionary	Mandatory	Final
Court's discretion	Yes	No	No
Can be rebutted	Yes	Yes	No

➤ Important Case Laws

Shambhu Nath Sarkar v. State of Ajmer (1956)

The Supreme Court emphasized the general principle that the **burden of proving guilt lies upon the prosecution**, and the prosecution must establish its case in accordance with the required standard of proof.

Trimukh Maroti Kirkan v. State of Maharashtra (2006)

The Supreme Court explained that where certain facts are especially within the knowledge of a person, the principle relating to special knowledge may become relevant.

However, the prosecution must first establish the foundational facts of its case.

Conclusion

Sections **104–114 of the Bharatiya Sakshya Adhiniyam, 2023** lay down important rules regarding the burden of proving facts. Generally, the burden lies upon the person who asserts a fact, but in certain circumstances the burden may shift to another person.

The law also recognizes different presumptions—**may presume, shall presume and conclusive proof**—which assist the Court in drawing legal inferences from established facts.

1. THE PRINCIPLE OF ESTOPPEL (Sections 121–123 – BSA, 2023)

Introduction

The principle of **estoppel** prevents a person from denying a fact or state of affairs which he has previously represented to another person, where the other person has acted upon such representation.

The basic principle is that a person cannot “**approbate and reprobate**”, i.e., he cannot accept and reject the same position at different times to the disadvantage of another person.

1. Estoppel – Section 121

Section 121 provides that when one person, by his **declaration, act or omission**, intentionally causes or permits another person to believe a thing to be true and to act upon such belief, neither he nor his representative shall be allowed to deny the truth of that thing in a suit or proceeding between them.

Essential Conditions

For estoppel to apply:

1. A person must make a representation by words, conduct or omission.
2. Another person must believe the representation to be true.
3. The other person must act upon that belief.
4. The person making the representation cannot subsequently deny its truth.

Example

A intentionally makes B believe that a particular property belongs to A. B purchases the property relying upon A's representation. Later, A cannot deny the representation against B.

2. Estoppel of Tenant and Licensee – Section 122

A tenant is generally not permitted to deny that his landlord had title to the property **at the beginning of the tenancy**.

Similarly, a licensee cannot deny the authority or title of the person who granted the licence while continuing to enjoy the benefit of that licence.

This rule is based on the principle that a person who enters into possession under another person's authority cannot later deny that authority.

3. Estoppel of Acceptor of Bill of Exchange, Bailee or Licensee – Section 123

Section 123 applies the principle of estoppel to certain specific relationships.

An acceptor of a bill of exchange cannot deny the authority of the drawer to draw the bill at the time of acceptance.

Similarly, a **bailee** cannot deny that the bailor had authority to create the bailment at the commencement of the bailment.

The provision is based on the principle that a person who has accepted a particular legal relationship cannot later deny its basic foundation against the other party.

➤ Important Case Laws

B.L. Sreedhar v. K.M. Munireddy (2003)

The Supreme Court explained that the doctrine of estoppel is based on the principles of **equity, justice and good conscience**.

A person who has made another believe a particular state of affairs and induced him to act upon it cannot subsequently take a contrary position.

Nagubai Ammal v. B. Shama Rao (1956)

The Supreme Court explained the principle of estoppel and held that it may arise from the conduct, representation or acts of a person.

Conclusion

Sections **121–123 of the Bharatiya Sakshya Adhiniyam, 2023** deal with the doctrine of estoppel. The principle prevents a person from taking an inconsistent position when another person has relied upon his earlier representation.

The main types covered include **general estoppel, estoppel of a tenant or licensee, and estoppel relating to specific legal relationships such as bailment and bills of exchange.**

2. PRIVILEGED COMMUNICATIONS (Sections 128–134 – BSA, 2023)

Introduction

Generally, a witness may be required to disclose relevant facts before a Court. However, the law recognizes certain **privileged communications**, which cannot ordinarily be disclosed or compelled to be disclosed.

The purpose of privilege is to protect confidential relationships and certain important public or private interests.

1. Communication During Marriage – Section 128

No person who is or has been married can be compelled to disclose any communication made to him or her during marriage by the spouse.

Such communication cannot ordinarily be disclosed without the consent of the person who made it.

Exceptions

The privilege does not apply:

- In suits between married persons; or
- In proceedings in which one married person is prosecuted for an offence against the other.

Important Point

The protection applies to **communications made during marriage**. The privilege may continue even after the marriage has ended.

2. Evidence as to Affairs of State – Sections 129–130

Certain unpublished official records relating to the affairs of the State are protected from disclosure.

A public officer may also be protected from being compelled to disclose communications made to him in official confidence when disclosure would be contrary to the public interest.

The object is to protect **State secrets and confidential official communications**.

3. Professional Communications Between Lawyer and Client – Section 132

A legal practitioner is generally not permitted, without the express consent of the client, to disclose:

- Communications made by the client;
- The contents or condition of documents obtained during professional employment; or
- Advice given by the lawyer to the client.

This privilege applies to communications made in the course of professional employment.

Exceptions

Professional privilege does not protect:

1. Communications made for an **illegal purpose**; or

2. Facts observed by the lawyer showing that a crime or fraud has been committed after the commencement of professional employment.

4. Confidential Communication with Legal Adviser – Section 133

A person is not ordinarily compelled to disclose confidential communications made with his or her legal professional adviser.

However, if the person voluntarily gives evidence regarding such communication, the Court may permit appropriate inquiry to the extent necessary to explain that evidence.

5. Production of Title Deeds and Other Documents – Section 134

A person who is not a party to a suit cannot ordinarily be compelled to produce documents relating exclusively to his own title if their production would expose him to legal liability, unless the law requires otherwise.

➤ Important Case Law

M.C. Verghese v. T.J. Ponnann (1970)

The Supreme Court considered the privilege relating to communications between husband and wife.

The Court explained that the privilege applies to **communications made during marriage**, although the existence of relevant facts may be proved through other admissible evidence.

Importance: A leading case on marital communication privilege.

R.D. Saxena v. Balram Prasad Sharma (2000)

The Supreme Court discussed the relationship between an advocate and client and emphasized the importance of professional obligations and confidentiality.

Importance: Relevant to the principle of lawyer-client confidentiality and professional privilege.

➤ Conclusion

Sections **128–134 of the Bharatiya Sakshya Adhiniyam, 2023** protect certain confidential communications from compulsory disclosure. The important forms of privilege include:

- Communication between husband and wife;
- Unpublished affairs of State;
- Official communications; and
- Professional communications between a lawyer and client.

These provisions balance the need to discover the truth in judicial proceedings with the need to protect confidential relationships and important public interests.

3. ACCOMPLICE (Section 138 and Section 119 – BSA, 2023)

➤ Meaning of Accomplice

An **accomplice** is a person who has voluntarily participated or assisted in the commission of an offence. He may be a principal offender, abettor or participant in the crime.

An accomplice may be examined as a witness against the accused.

Section 138 – Competency of Accomplice

Under **Section 138 of the Bharatiya Sakshya Adhiniyam, 2023**, an accomplice is a competent witness against an accused person.

A conviction is **not illegal merely because it proceeds upon the uncorroborated testimony of an accomplice**.

Thus, in law, the evidence of an accomplice is admissible. However, as a rule of prudence, Courts generally look for independent corroboration before relying upon such evidence.

Section 119 – Illustration

Section 119 deals with the presumption regarding evidence of an accomplice. Its illustration permits the Court to presume that:

“An accomplice is unworthy of credit unless he is corroborated in material particulars.”

This is a **presumption of fact**, and the Court may require corroboration of the accomplice's testimony.

Important Principle

There is an apparent difference between Sections 138 and 119:

- **Section 138:** A conviction based on uncorroborated accomplice evidence is not illegal.
- **Section 119:** The Court may presume that an accomplice is unworthy of credit unless corroborated in material particulars.

Therefore, as a matter of judicial prudence, **corroboration is generally desirable**.

➤ Important Case Laws

Sarwan Singh Rattan Singh v. State of Punjab (1957)

The Supreme Court held that although a conviction based on the uncorroborated testimony of an accomplice is legally permissible, Courts generally follow the rule of prudence requiring corroboration in material particulars.

Bhuboni Sahu v. King (1949)

The Privy Council observed that the evidence of an accomplice should be treated with caution because an accomplice may have a motive to shift responsibility or obtain benefits.

➤ Conclusion

An accomplice is a competent witness under **Section 138 of the BSA, 2023**, and a conviction based on his uncorroborated testimony is not illegal. However, according to the illustration to **Section 119**, the Court may presume that an accomplice is unreliable unless his testimony is corroborated in material particulars.

Thus, the rule is:

“Legally admissible, but prudentially unsafe without corroboration.”

4. EXAMINATION OF WITNESSES (Sections 140–165 – BSA, 2023)

Introduction

Sections **140–165** deal with the examination of witnesses and the manner in which their evidence is recorded and tested before the Court. The main stages of examination are:

1. Examination-in-chief;
2. Cross-examination; and
3. Re-examination.

1. Order of Production and Examination of Witnesses – Sections 140–142

The law provides rules regarding the order in which witnesses are produced and examined.

A witness is generally examined first by the party who calls him. The witness may then be cross-examined by the adverse party and, if necessary, re-examined by the party calling him.

2. Examination-in-Chief, Cross-Examination and Re-Examination – Section 143

Examination-in-Chief

Examination of a witness by the party who calls him is called **examination-in-chief**.

Its object is to place the witness's evidence before the Court.

Cross-Examination

Examination of a witness by the adverse party is called **cross-examination**.

Its main purpose is to:

- Test the truthfulness of the witness;
- Test his credibility;
- Discover inaccuracies or inconsistencies; and
- Bring out facts favourable to the opposite party.

Re-Examination

Examination of a witness after cross-examination by the party who called him is known as **re-examination**.

Its purpose is mainly to explain matters arising during cross-examination.

3. Order and Direction of Examination – Section 144

Witnesses are generally examined in the following order:

Examination-in-chief → Cross-examination → Re-examination

Cross-examination is not confined only to the facts stated in examination-in-chief. However, the Court may regulate the examination according to law.

4. Leading Questions – Sections 146–148

A **leading question** is a question which suggests the answer that the person asking wishes or expects to receive.

Example

Instead of asking:

“Who was present at the place?”

the question:

“You saw A at the place, did you not?”

is a leading question.

Leading questions are generally not allowed in examination-in-chief or re-examination without the permission of the Court, except regarding introductory or undisputed matters.

However, they may generally be asked during **cross-examination**.

5. Evidence as to Matters in Writing – Section 149

When a witness is questioned about matters contained in a document, the document may be required to be produced according to the rules of evidence.

The purpose is to ensure that the contents of written documents are properly proved before the Court.

6. Cross-Examination as to Previous Statements – Section 153

A witness may be cross-examined regarding previous statements made by him in writing.

If it is intended to contradict the witness using such previous statement, his attention must first be drawn to the relevant parts of the statement before it is proved.

7. Questions Testing Veracity – Section 154

During cross-examination, questions may be asked to:

- Test the witness's veracity;
- Discover who he is and his position in life; or
- Shake his credit by injuring his character, subject to legal restrictions.

The Court has the power to control improper or unnecessary questioning.

8. Court's Control Over Questions – Sections 156–159

The Court may forbid questions which are:

- Indecent or scandalous;
- Intended to insult or annoy the witness; or
- Improper and not relevant to the case.

Thus, the right of cross-examination is not unlimited.

9. Hostile Witness – Section 157

When a witness does not support the party calling him or appears to be unwilling to tell the truth, the Court may permit the party who called the witness to cross-examine him.

Such a witness is commonly known as a **hostile witness**.

The entire testimony of a hostile witness does not automatically become useless. The Court may rely upon the part of his evidence which is found to be reliable.

10. Impeaching the Credit of a Witness – Section 162

The credit of a witness may be impeached by the adverse party through legally recognized methods, such as proving:

- That the witness is unworthy of credit;
- That the witness has made previous inconsistent statements; or
- Other facts affecting his credibility.

11. Questions by the Judge – Section 165

Section 165 gives the **Judge wide powers** to ask any question to a witness or party and to order the production of any document or thing necessary for discovering or obtaining proper proof of relevant facts.

The purpose of this power is to enable the Court to discover the truth.

However, the judgment must ultimately be based upon facts that are legally relevant and properly proved.

➤ Important Case Laws

Sat Paul v. Delhi Administration (1976)

The Supreme Court held that the evidence of a hostile witness is not completely rejected merely because the witness has been declared hostile. The reliable part of his testimony may still be accepted.

State of U.P. v. Ramesh Prasad Misra (1996)

The Supreme Court reiterated that the evidence of a hostile witness can be relied upon to the extent that it is found credible and trustworthy.

Ram Chander v. State of Haryana (1981)

The Supreme Court emphasized the important role of the Judge in discovering the truth and explained the wide powers of the Court to question witnesses.

➤ **Conclusion**

Sections **140–165 of the Bharatiya Sakshya Adhiniyam, 2023** regulate the examination of witnesses and ensure a fair trial. The most important stages are **examination-in-chief, cross-examination and re-examination**.

The provisions also regulate leading questions, cross-examination, hostile witnesses and the powers of the Judge. The ultimate objective is to test the reliability of witnesses and assist the Court in discovering the truth.

~Abhishek Chaudhary